

Master Subscription Agreement

Contract Reference: CTR-0015

This Master Subscription Agreement ("Agreement") is entered into as of 2024-01-29 by and between **Larkspur Software, Inc.** ("Larkspur Flow"), and **Fern Hotels Inc.** ("Customer"), together the "Parties".

1. Term and Renewal

This Agreement commences on the Effective Date and continues for an initial term of 12 months (the "Initial Term"). Following the Initial Term, this Agreement will automatically renew for successive periods of the same length unless either Party provides written notice of non-renewal at least 30 days prior to the end of the then-current term.

2. Subscription and Pricing

Customer subscribes to the Larkspur Flow platform under the following commercial terms for the duration of the Initial Term:

Plan Tier	Licensed Seats	Monthly Subscription Fee	Payment Terms
Enterprise	240	\$26,161 USD	Net 60

3. Service Level Commitment

Larkspur Flow will use commercially reasonable efforts to maintain a monthly platform uptime of at least 99.5%, excluding scheduled maintenance windows communicated at least 48 hours in advance. Service credits for failure to meet this commitment are available upon written request within 30 days of the affected billing period.

4. Data Residency

Customer data will be hosted and processed within the United States.

5. Additional Terms

Customer's data export rights survive termination of this Agreement for a period of 90 days, during which Customer may request a full export of its data in a standard machine-readable format.

6. General

This Agreement, together with any order forms referencing it, constitutes the entire agreement between the Parties with respect to its subject matter. Either Party may terminate this Agreement for the other Party's uncured material breach upon 30 days' written notice.

Signatures

For Larkspur Software, Inc.:

For Customer:

Marcus Ellery

Noah Mitchell

Chief Revenue Officer

Head of Customer Success